

26STCP01071 26STCP01071

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-06-24

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Case Number: 26STCP01071 Hearing Date: June 24, 2026 Dept: 512

HEARING DATE: Wed., June 24, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: C.C. v. Long Beach Unified School

District COMP. FILED: 3-11-26

CASE NUMBER: 26STCP01071

NOTICE: OK

PROCEEDINGS: PETITION FOR

RELIEF FROM GOVERNMENT CLAIM FILING

MOVING PARTY: Petitioner

C.C., a minor by and through his Guardian ad Litem, HELEN CASTELO

RESP. PARTY: Unopposed

PETITION FOR RELIEF FROM GOVERNMENT

CLAIM FILING

(Gov. Code, §§911.2, 911.4, 911.6, 946.6)

TENTATIVE RULING:

Petitioner C.C., a minor by and

through his Guardian ad Litem, Helen Castelo's Petition for Relief from

Government Claim Filing is GRANTED.

Petitioner is ordered to

give notice of ruling.

SERVICE:

☒ Proof of

Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Due by June 9, 2026 [

] Late ☒ None

REPLY: Due by June 16, 2026 [] Late ☒ None

ANALYSIS:

I.

Background

On March 12, 2026, Petitioner C.C., a

minor by and through Helen Castelo, ("Petitioner") filed the instant Petition

for Relief from Government Claim Filing Requirements against Respondent Long Beach Unified School District ("Respondent").

On March 27, 2026, Petitioner filed

Notice of Hearing and a Supplemental Declaration in support of the Petition. No

Response or Opposition to the Petition had been filed. The matter came for

hearing on May 18, 2026, and the Court noted the following:

"Petitioner is a minor and, while the

Petition states 'Helen Castelo' is the Guardian Ad Litem for minor Petitioner

C.C., there is neither an application for Appointment of Guardian Ad Litem

(CIV-010 form) nor an order appointing Helen Castelo as C.C.'s Guardian Ad

Litem in the Court's records.

Further, there is no proof of service

demonstrating proper Notice of the Petition has been served on Respondent.

While the Petition and supporting documents all contain proofs of service, the

proofs of service are dated February 11, 2026, which is prior to the Petition

being filed with the Court and a hearing date being assigned to the Petition.

Thus, it is impossible for these proofs of service to have imparted notice of

the Petition's hearing date on Respondent.

Finally, the Court notes that the

Petition and accompanying documents do not contain a copy of the subject

government claim denial.”

(Min. Order, 5/18/26.) As a result, the Court continued

the matter to allow Petitioner to address the defects noted therein. (Id.)

On June 2, 2026, Petitioner filed a

Second Supplemental Declaration addressing the defects noted at the May 18,

2026 hearing.

II.

Legal

Standard

Before

a suit for damages may be filed against a public entity, a claimant must

present a timely written claim to the public entity, and the claim must have

been acted upon by the board or deemed rejected. (Gov. Code § 945.4; *Munoz*

v. State of California, (1995) 33 Cal.App.4th 1767, 1777.) A claim relating

to a cause of action for injury to person or personal property must be

presented to the public entity no later than six months after the accrual of

the cause of action. (Gov. Code § 911.2; *Munoz, supra*, 33

Cal.App.4th at 1776.)

If

a claimant fails to present a claim within the statutory period, the claimant

may apply “within a reasonable time not to exceed one year after the accrual of the cause of action” to the public entity for leave to present a late claim. (Gov. Code § 911.4, subd. (b).) If the public entity denies leave to present a late claim, a claimant may petition the Court under Government Code § 946.6 for relief from the requirements of Government Code § 945.4. (Munoz, supra, 33 Cal.App.4th at 1777.)

A

petition pursuant to Government Code § 946.6 must be “filed within six months after the application to the board is denied or deemed to be denied pursuant to Section 911.6.” (Gov. Code § 946.6, subd. (b); see also City of Los Angeles v. Superior Court (1993) 14 Cal.App.4th 621, 627.) This requirement is mandatory and operates as a statute of limitations. (Lineaweaver v. S. Cal. Rapid Transit Dist. (1983) 139 Cal.App.3d 738, 741; see also J.M. v. Huntington Beach Union High School Dist. (2017) 2 Cal.5th 648, 653.)

III.

Discussion

As a preliminary matter, the Court notes that Helen Castelo filed an Application for Appointment of Guardian ad Litem (“GAL”) on June 15, 2026, which was granted on June 16, 2026. (See App.

for GAL, 6/15/26; Order for Appt. of GAL, signed on 6/16/26.) Furthermore,

Petitioner filed a supplemental declaration showing that Respondent was

served with the Notice of Hearing on

Petition for Late Claim and Supplemental Declaration in Support of Petition

(originally set for hearing on 5/18/26) via certified mail and email on March

27, 2026. (Lafrades Second Suppl. Decl., ¶¶3-5, Exs. G-I.) With respect to the

government claim denial, Petitioner states that he never received an government

claim denial as it relates to his September 4, 2025 Application for Permission

to Present Late Claim. (Id., ¶6.) Likewise, Petitioner's counsel attests

that her office never received a copy of any government claim denial for

Petitioner's September 4, 2025 Application for Permission to Present Late

Claim. (Id.) Petitioner's counsel further states that she left multiple

voicemails and emails for Respondent's counsel requesting a copy of the

government claim denial, but no copy has been provided as of the date of the

second supplemental declaration. (Id.) The Notice of the Court's May 18,

2026 minute order and the second supplemental declaration were served on Respondent's

counsel via email on June 2, 2026.

The Court proceeds on the substance of

the Petition as follows. On or about September 4, 2024, Petitioner, who was

enrolled as a special education student within the Long Beach Unified School

District, was physically abused and subject to related misconduct by a school employee. (Lafrades Suppl. Decl., ¶2.) On or about September 4, 2025, one year after the accrual of Petitioner's cause of action, he filed an Application for Permission to Present Late Claim. (Id., ¶3, Ex. A.)

Pursuant to Government Code Section

911.6, subdivision (a): "The board shall grant or deny the application within 45 days after it is presented to the board. The claimant and the board may extend the period within which the board is required to act on the application by written agreement made before the expiration of the period." (Gov. Code, § 911.6, subd. (a).) "If the board fails or refuses to act on an application within the time prescribed by this section, the application shall be deemed to have been denied on the 45th day or, if the period within which the board is required to act is extended by agreement pursuant to this section, the last day of the period specified in the agreement." (Gov. Code, § 911.6, subd. (c).) Respondent did not respond to the Application for Permission to Present Late Claim within the forty-five (45) day deadline (Lafrades Suppl. Decl., ¶5), thus the application was deemed denied on October 20, 2025^[1].

Subsequently, on November 17, 2025, Petitioner sent an email correspondence to Respondent regarding the Application for Permission to Present Late Claim.

(Lafrades Suppl. Decl., ¶6.) No response or action was taken by Respondent. (Id.)

Approximately four to five months later, Petitioner filed the instant Petition

for Relief from Government Claim Filing Requirements. The petition is timely

per Government Code Section 946.6.

Here, Petitioner argues that failure

to present a timely claim was due to the fact that he was a minor during all of

the time specified in Government Code Section 911.2 for presentation of a

claim. (Lafrades Suppl. Decl., ¶8.) It is undisputed based on the Court's

record that petitioner is a minor and this Petition is being brought on his

behalf by his mother, who was appointed his GAL in this action. A petition pursuant to Government

Code § 946.6 must be granted if "[t]he person who sustained the

alleged injury, damage, or loss was a minor during all of the time specified

in Section 911.2 for the presentation of the claim." (Gov. Code, §

946.6, subd. (c)(2); see also *Christopher P. v. Mojave Unified School Dist.*

(1993) 19 Cal.App.4th 165, 169 ["The court must grant the petition if, inter

alia, the plaintiff demonstrates by a preponderance of the evidence that the

application to present a late claim was made within a reasonable time not to

exceed one year, and the injured party was a minor during the six-month claim

presentation period.].) "Furthermore, 'sections 911.6 and 946.6 ensure a minor

that when a late-claim application is filed within a year of the accrual of his

cause of action, his claim will not be barred because of a delay within that

year for which the minor himself is not responsible.' ” (Christopher P. v.

Mojave Unified School Dist. (1993) 19 Cal.App.4th 165, 169.)

IV.

Conclusion

& Order

For the foregoing reasons, Petitioner

C.C., a minor by and through his Guardian ad Litem, Helen Castelo's Petition

for Relief from Government Claim Filing is GRANTED.

Petitioner is ordered to

give notice of ruling.

[1]

Although Petitioner states that the Application was deemed denied on October

19, 2025, forty-five (45) after September 4, 2025 is October 20, 2025.